

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	21-07-2026 14:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	21-07-2026 14:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	120 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Power
विभाग का नाम/Department Name	Na
संगठन का नाम/Organisation Name	N/a
कार्यालय का नाम/Office Name	Baira Siul Power Station, Nhpc Ltd., Himachal Pradesh, Northern India.
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: bodhashok@nhpc.nic.in
कुल मात्रा/Total Quantity	14
वस्तु श्रेणी /Item Category	Camera for CCTV System (V3) (Q2)
उन्हीं/समान सेवा के लिए अपेक्षित विगत अनुभव के वर्ष/Years of Past Experience Required for same/similar service	3 Year (s)
वर्षों के अनुभव एवं टर्नओवर से एमएसई को छूट प्राप्त है / MSE Relaxation for Years Of Experience and Turnover	Yes Complete
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है / Startup Relaxation for Years Of Experience and Turnover	Yes Complete
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Experience Criteria,Past Performance,Certificate (Requested in ATC),OEM Authorization Certificate,Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	Yes (Documents submitted as part of a clarification or representation during the tender/bid process will also be displayed to other participated bidders after log in)

बिड विवरण/Bid Details	
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	10
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	3
विगत प्रदर्शन / Past Performance	10 %
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	Camera for CCTV System (V3)
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	3 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
अनुमानित बिड मूल्य / Estimated Bid Value	495239
Payment Timelines	Payments shall be made to the Seller within 45 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	5.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	39

(a). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

लाभार्थी /Beneficiary :

SBI SURANGANI (CODE-02492)
Baira Siul Power Station, Nhpc Ltd., Himachal Pradesh
(Nhpc Limited Faridabad)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	25

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

1. If the bidder is a Micro or Small Enterprise as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Experience Criteria" as defined above subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
2. If the bidder is a Micro or Small Enterprise (MSE) as per latest orders issued by Ministry of MSME, the bidder shall be relaxed from the eligibility criteria of "Bidder Turnover" as defined above subject to meeting of quality and technical specifications. If the bidder itself is MSE OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover, shall upload the supporting documents to prove his eligibility for Relaxation.
3. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Experience Criteria" as defined above subject to their meeting of quality and technical specifications. The bidder seeking Relaxation from Experience Criteria, shall upload the supporting documents to prove his eligibility for Relaxation.
4. If the bidder is a DPIIT registered Startup, the bidder shall be relaxed from the the eligibility criteria of "Bidder Turnover" as defined above subject to their meeting of quality and technical specifications. If the bidder is DPIIT Registered OEM of the offered products, it would be relaxed from the "OEM Average Turnover" criteria also subject to meeting of quality and technical specifications. The bidder seeking Relaxation from Turnover shall

upload the supporting documents to prove his eligibility for Relaxation.

5. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM of the product offered in the bid {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts and delivery acceptance certificates like CRAC to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.

6. **Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 25% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.

7. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

8. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 10% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

Camera For CCTV System (V3) (3 pieces)

Bis Required	Yes
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तकनीकी विशिष्टियाँ /Technical Specifications

[* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification](#)

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Generic	PTZ Camera / Speed Dome Camera	Yes, No
	Type of Camera Housing	Dome Camera
	IP Camera	Yes
	Camera Image Sensing capacity	2MP (1920 x 1080 Pixel) or better
	Maximum Frame Rates(frames per second) Supported	50/60 Or higher

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
	Number of simultaneous video Streams	Quad Stream(Full/Compressed)
	IR illumination Range(meter)	201-300, 301-400, 401-500, 501-600 Or higher
Construction	Installation Type/ Area of use	Outdoor
Optics/ Performance	Lens Type	Varifocal Motorized
	Focal Length for Fixed / Fisheye Lens Type (mm)	NA (being varifocal Lens)
	Focal Length for Varifocal Lens Type (mm)	Max 125 mm or better
	Optical Zoom	more than 35X - 40X, more than 40X - 45X, more than 45X - 50X Or higher
Network And Interface	Type of network required to transmit video / Image recorded by camera	Wired
Storage	On Board SD Card Support	Yes
	SD Card Capacity	512 GB, 1 TB Or higher
Warranty / Service	Comprehensive Warranty (Year)	2, 3, 4, 5 Or higher
Certification / Test Report	Availability of security testing report for CCTV/VSS issued by Standardization Testing and Quality Certification (STQC) Laboratory or any other agency notified by Meity or BIS certificate indicating ER	Yes (Complying to the requirement of clause 5 of S.O. 1119 (E) on the subject: Public Procurement (Prefence to make in India) Order 2017-Notifying CCTV/Video Surveillance System for Security in furtherance of the order at dated 6th March, 2024 or Latest)
	BIS Registration (CRS) for safety general requirements as per IS 13252 (Part 1):latest indicating ER (for CCTV Camera)	Yes

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
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क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Suresh Vitthalrao Zanzad	176317,Baira Siul Power Station, NHPC Ltd., Surangani, P.O.: Surangani, Tahsil: Salooni, Distt.: Chamba	3	30

Camera For CCTV System (V3) (11 pieces)

Bis Required	Yes
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तकनीकी विशिष्टियाँ /Technical Specifications

* जेम कैटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Generic	PTZ Camera / Speed Dome Camera	Yes, No
	Type of Camera Housing	Bullet Camera
	IP Camera	Yes
	Camera Image Sensing capacity	5MP(2560×1920 Pixel) or better
	Maximum Frame Rates(frames per second) Supported	25/30, 50/60 Or higher
	Number of simultaneous video Streams	Quad Stream(Full/Compressed)
	IR illumination Range(meter)	15-30, 31-50, 51-70, 71-100, 101-200, 201-300, 301-400, 401-500, 501-600 Or higher
Construction	Installation Type/ Area of use	Outdoor
Optics/ Performance	Lens Type	Fixed
	Focal Length for Fixed / Fisheye Lens Type (mm)	4 or better
	Focal Length for Varifocal Lens Type (mm)	NA (being fixed lens)
	Optical Zoom	NA(being fixed lens) Or higher
Network And Interface	Type of network required to transmit video / Image recorded by camera	Wired
Storage	On Board SD Card Support	Yes
	SD Card Capacity	512 GB, 1 TB Or higher
Warranty / Service	Comprehensive Warranty (Year)	2, 3, 4, 5 Or higher

विवरण/Specification	विशिष्टि का नाम /Specification Name	बिड के लिए आवश्यक अनुमत मूल्य /Bid Requirement (Allowed Values)
Certification / Test Report	Availability of security testing report for CCTV/VSS issued by Standardization Testing and Quality Certification (STQC) Laboratory or any other agency notified by Meity or BIS certificate indicating ER	Yes (Complying to the requirement of clause 5 of S.O. 1119 (E) on the subject: Public Procurement (Preference to make in India) Order 2017-Notifying CCTV/Video Surveillance System for Security in furtherance of the order at dated 6th March, 2024 or Latest)
	BIS Registration (CRS) for safety general requirements as per IS 13252 (Part 1):latest indicating ER (for CCTV Camera)	Yes

परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Suresh Vitthalrao Zanzad	176317,Baira Siul Power Station, NHPC Ltd., Surangani, P.O.: Surangani, Tahsil: Salooni, Distt.: Chamba	11	30

Special terms and conditions-Version:2 effective from 18-02-2025 for category Camera for CCTV System (V3)

1. **Note to Buyers:**

- The Central Ministries/ Departments and other government buyers as applicable shall take cognizance of "Public Procurement (Preference to Make in India) Order 2017-Notifying CCTV/ Video Surveillance dated 6th March 2024, System for Security in furtherance of the Order" 5 " while procuring The surveillance devices i.e., CCTV Cameras (Analog/ IP/ Analog Speed Dome/ IP Speed Dome) should comply with the Essential Requirements (ERs) for security prescribed by MeitY to ensure the security of the VSS / CCTV systems, as per the Appendix 'A', as amended from time to time. The security testing report for CCTV/VSS is to be issued by the Standardisation Testing and Quality Certification (STQC) Laboratory or any other agency notified by MeitY from time to time. The validity of the test report issued by STQC Lab will be three years from the date of issue of the report. These Essential Requirements (ERs) for security of CCTV Cameras/VSS system will be enforced after 3 months from the date of issuance of this Notification. The security norms for the DVR and NVR will be notified subsequently." Accordingly, compliance regarding security testing report for CCTV/VSS issued by Standardization Testing and Quality Certification (STQC) Laboratory or any other agency notified by Meity shall be ensured before accepting/releasing CRAC of the supplied stores. **Please note that the certified product list meeting Essential Requirements (ERs) is available at-<https://www.stqc.gov.in/iot-system-certification-scheme-iots-cs-0>**
- Buyers are also expected to strictly ensure compliance with the MHA advisory issued by O.M. IV-24011/22/2020-Prov-I/270 dated 26 April 2024. Where in inter alia following is stipulated.
 - All Government agencies are advised that henceforth they may procure their CCTVs

- and allied solutions and hardware based on the Public Procurement Order 2017 and ensure the security of CCTV systems as mentioned in the above-mentioned notifications.
- ii. Further, MeitY has issued an Advisory vide O.M. dated W-43/11/2021-IPHW dated 11 March 2024 on the Threat of Information through CCTV/Video Surveillance System (VSS)/Digital Video Recorders/Network Video Recorders. All Government agencies are advised to adhere to the guidelines outlined within the ambit of the Public Procurement Orders to safeguard the overall security and integrity of CCTV Cameras.
 - iii. Additionally, further notification from relevant government department or ministry pertaining to the aforementioned PPO is to be complied with.
- c. Buyer is expected to apply all relevant filters against "Golden/Filterable" parameters to clearly define their technical requirements.
 - i. **For Procurement through BID/RA:** -One and only one value to be specified by the buyer against "Golden" parameters. Selecting "Any value" against GOLDEN parameters may result in incomplete specification in the bid and finally result in a vague contract. Accordingly any bid not having specific value against the GOLDEN parameters resulting in limited competition or higher cost to the exchequer or incomplete/ vague contract, the Buyer shall be solely responsible.
 - ii. **For Procurement through DIRECT/L1:**Buyers are advised to apply filters/ selections allowing all the values that are considered meeting or are better than their technical requirements. For any violation of the above, if resulting in limited competition or higher cost to the exchequer, the Buyer shall be solely responsible.
 - d. Buyer intending to buy Camera for CCTV System (V2) with optional accessories, and optional features shall use BID/RA. These optional kind of parameters are multi-select for the seller, the buyer shall stipulate/select only required accessories in their bid/RA. The required accessories as per bid/RA shall only be verified before accepting the stores. This is to ensure strict compliance of supplied stores to the bid requirement including ATC if any. However, the contract generated may have mentioned accessories other than the bid/RA requirement due to the fact that the contract gets generated based on the catalog uploaded by the OEM/seller. This type of optional parameter is to enable the seller without creating multiple catalogs for given base models having capabilities to be upgraded.
 - e. Direct/L1 procurement with a selection of optional accessories will not be covered in supply through their names/ offer may be appearing in the contract but seller/supplier do not supply the same being optional and the buyer has not exercised their right to choose by specifying the same in bid/RA.
 - f. Buyer shall also refer to GTC Clause 4. xiii.(w). The ATC / additional specification if any added by the buyer shall not be contradictory to the GeM category specifications / technical particulars (TP).
 - g. Buyer/ consignee shall verify all the parameters/ specification including the specification which are to be as per the OEM brochure before issuing CRAC.
 - h. The consignee is also required to verify the mandatory (CRS) BIS registration of the supplied stores to the IS 13252 Part 1 (2010) before accepting/ CRAC.
2. **Note to Sellers: -**
 - a. Seller may refer to GTC and ensure strict compliance of the uploaded/offered product which shall be in line with their model having the claimed specifications or better.
 - b. In case the seller's declared values are contradictory to the specifications provided elsewhere in the TP; the specification claimed in the TP shall supersede the seller's declared values.
 - c. Also, the same model shall not be uploaded across catalogs with unreasonable/ contradictory offerings.
 - d. In case any discrepancy is observed in the offered/ uploaded products, the OEM dashboard of the respective Brand may be removed, and the account shall be suspended as per IM policy.

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/**Buyer Added Bid Specific Terms and Conditions**

1. **Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery

time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. Generic

Bidders are advised to check applicable GST on their own before quoting. Buyer will not take any responsibility in this regards. GST reimbursement will be as per actuals or as per applicable rates (whichever is lower), subject to the maximum of quoted GST %.

3. Generic

Bidder financial standing: The bidder should not be under liquidation, court receivership or similar proceedings, should not be bankrupt. Bidder to upload undertaking to this effect with bid.

4. Generic

Bidder shall submit the following documents along with their bid for Vendor Code Creation:

- a. Copy of PAN Card.
- b. Copy of GSTIN.
- c. Copy of Cancelled Cheque.
- d. Copy of EFT Mandate duly certified by Bank.

5. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

1. Bidder should upload signed & scanned copy of buyer uploaded ATC document and buyer uploaded specification as a token of acceptance.

2. Engineer-In-Charge: Sh. Praveen Kumar, DGM (M), Mobile No: 8130138647 & Email: itc-bairasiul@nhpc.nic.in.

3. Consignee: Sh. Suresh V. Zanzad, DGM (M), Mobile No: 9702437900 , Sh. Nilambar Mishra, M (E), Mobile No-9800016495 & Sh. T. P. Singh, DM (E), Mobile No- 9149489295 & 9419988425 and Email: store-bairasiul@nhpc.nic.in

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6. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

7. Purchase Preference (Centre)

Purchase preference to Micro and Small Enterprises (MSEs): Purchase preference will be given to MSEs as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail the Purchase preference, the bidder must be the manufacturer of the offered product in case of bid for supply of goods. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service. If L-1 is not an MSE and MSE Seller (s) has/have quoted price within L-1+ 15% of margin of purchase preference /price band defined in relevant policy, such Seller shall be given opportunity to match L-1 price and contract will be awarded for percentage of 100% of total value.

8. Certificates

Bidder's offer is liable to be rejected if they don't upload any of the certificates / documents sought in the Bid document, ATC and Corrigendum if any.

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---